

Judge Hellerstein

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

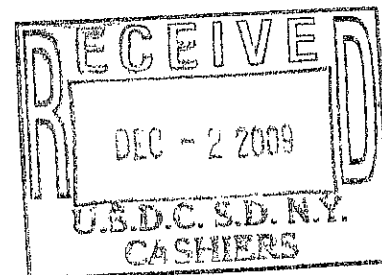
THEODORE MACNOW and MATTHEW NATHANSON,

Plaintiffs,

- against -

STEVEN SPINELLI, individually and as a police officer;
JOHN MCNAMARA, individually and as a police officer;
SALVATORE TAMBURELLO, individually
and as police officer;
JOHN DOE 1, individually and as police officer;
JOHN DOE 2, individually and as a police detective;
JOHN DOE 3, individually and as a police officer;
JOHN DOE 4, individually and as a police officer;
JOHN DOE 5, individually and as a police officer;
JOHN DOE 6, individually and as a police officer;
JOHN DOE 7, individually and as a police officer
RAYMOND KELLY, individually and as Commissioner
of the New York City Police Department;
and
THE CITY OF NEW YORK,

Defendants.



Index No.

COMPLAINT

PLAINTIFFS DEMAND
TRIAL BY JURY

Plaintiffs Theodore Macnow and Matthew Nathanson, appearing by their
attorneys, Moskowitz, Book & Walsh, LLP, for their complaint, allege as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiffs seek damages to redress the
deprivation, under color of state law, of rights secured to them under the United States

Constitution and under the constitution and laws of New York State. On December 19, 2008, defendants seized plaintiffs Theodore Macnow and Matthew Nathanson and used excessive force to arrest and conspired to incarcerate plaintiffs on false charges without probable cause, causing plaintiffs serious and permanent injuries. In an attempt to cover up their unlawful actions, defendants conspired to and did maliciously prosecute plaintiffs Nathanson and Macnow in New York City Criminal Court.

II. JURISDICTION AND VENUE

2. Jurisdiction is conferred on this Court by 28 U.S.C. §§ 1343(3) and (4), which provide for original jurisdiction in this Court over all suits brought pursuant to 42 U.S.C. § 1983, and by 28 U.S.C. § 1331, which provides jurisdiction over all actions arising under the Constitution and laws of the United States. The Court also has supplemental jurisdiction over plaintiffs' pendent state law claims pursuant to 28 U.S.C. § 1367(a).

3. Venue is proper because all of the events giving rise to the present action occurred within the Southern District of New York. 28 U.S.C. § 1391(b).

III. PARTIES

4. Plaintiff Theodore Macnow, a Tufts University graduate and current pediatric medical resident at Columbia Presbyterian Hospital, resides in the City and State of New York.

5. Plaintiff Matthew Nathanson, a Tufts university graduate and currently a Development Assistant for Pretty Matches Productions, resides in Valley Stream in the State of New York.

6. Defendant City of New York ("City") is a municipal corporation, incorporated pursuant to the laws of the State of New York, the Municipal Charter and the NYC Administrative Code.

7. Upon information and belief, in December 2008, defendant Steven Spinelli, Shield No. 18321 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

8. Upon information and belief, in December 2008, defendant John McNamara, Shield No. 22960 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

9. Upon information and belief, in December 2008, defendant Salvatore Tamburello, Shield No. 16261 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

10. Upon information and belief, in December 2008, defendant John Doe Officer 1 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

11. Upon information and belief, in December 2008, defendant John Doe Officer 2 was employed as a police officer/sergeant in the New York City Police Department, assigned to the 7th Precinct located in New York, New York and had supervisory authority over the day-to-day work related activities of New York City officers assigned to the 7th precinct.

12. Upon information and belief, in December 2008, defendant John Doe Officer 3 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

13. Upon information and belief, in December 2008, defendant John Doe Officer 4 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

14. Upon information and belief, in December 2008, defendant John Doe Officer 5 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

15. Upon information and belief, in December 2008, defendant John Doe Officer 6 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

16. Upon information and belief, in December 2008, defendant John Doe Officer 7 was employed as a police officer in the New York City Police Department, assigned to the 7th Precinct located in New York, New York.

17. Upon information and belief, in December 2008 and at all times material herein, defendant Raymond W. Kelly was employed as Commissioner of Police by the New York City Police Department and is sued in his individual and official capacity.

18. As Police Commissioner, defendant Kelly was responsible for making and enforcing policies of the New York Police Department, including, among other things, (i) proper arrest procedures; (ii) the use of force by police officers; (iii) police protocol when working in plain clothes or undercover; (iv) the proper and prompt investigation of police officer misconduct; and (v) the duty of officers to intervene to prevent unlawful prosecution.

IV. FACTS

19. On the evening of December 19, 2008, at approximately 10:00 pm plaintiffs Macnow and Nathanson were in New York City visiting at a friend's house. Plaintiff Macnow had driven a Toyota Avalon into the City. The car was owned and registered to Macnow's father and Macnow was operating it with his father's permission.

20. On the evening of December 19, 2008, at approximately 10:00 p.m., plaintiffs Macnow and Nathanson left a friend's house and headed for a restaurant. They walked towards plaintiff MacNow's parked car in the vicinity of the intersection of Delancey and Columbia streets on the Lower East Side of Manhattan in order to retrieve Macnow's identification.

21. Plaintiff Macnow, accompanied by plaintiff Nathanson, approached plaintiff Macnow's parked car, unlocked and opened the passenger side door, and proceeded to try to retrieve his driver's license stored inside his car. Unable to locate his license inside the passenger side, plaintiff Macnow closed the door, locked the door with his key and took several steps away from the car before returning to double check the driver's side area of the car.

22. Plaintiff Macnow once again unlocked and opened the door to the car with a key and proceeded to look for his driver's license. Unable to locate his license inside the car, plaintiff Macnow once again closed and locked the door to his car with his key.

23. Plaintiffs walked away from the car in an attempt to cross Delancey Street when a yellow taxicab swerved and skidded to a stop in front of plaintiffs, boxing them in and frightening them. Four large, unidentified men in street clothes jumped out of the yellow cab and rushed towards plaintiffs in a menacing and accosting manner.

24. Plaintiffs were terrified, believing that they were the victims of a robbery.

25. Plaintiff Nathanson screamed, in substance, "Someone call the cops! We're being mugged!" and ran.

26. Plaintiff Nathanson did not see any badges displayed nor did he hear or see any of the unidentified men identify themselves as police officers.

27. Plaintiff Macnow heard one of the large, unidentified men state, in substance, that he was “the police,” whereupon plaintiff Macnow asked the unidentified men to produce identification.

28. One unidentified man, who was wearing a black football jersey and gray jeans, and had a shaved head and an earring, stated, in a sarcastic and threatening manner, “Yeah – I got I.D.,” and half-pulled out a chain from underneath his jersey that might or might not have been attached to a badge, exposing it only partially so that Macnow could not see it.

29. Plaintiff Macnow believed that the unidentified man was intentionally trying to obscure the badge from view because he did not have one or the badge was not real.

30. Hearing his friend Nathanson screaming, “We’re being mugged!” coupled with the men’s refusal to identify themselves, frightened Macnow, and he too ran for his life.

31. Plaintiff Nathanson ran up the block while two of the unidentified men chased after him.

32. Nathanson was smashed from behind by one or more of the unidentified men and knocked to the ground.

33. While plaintiff Nathanson was on the ground, one of the unidentified men stated in substance, “We can do this the easy way or we can do this the hard way and you can get fucked up.”

34. Throughout this entire period of time, plaintiff Nathanson continuously called out that he was being mugged and for someone to call the police.

35. While plaintiff Nathanson was on the ground, one or both of the unidentified men punched plaintiff about the face and head several times.

36. As a result of being knocked to the ground and punched repeatedly about his face and head, plaintiff Nathanson sustained a large oval cut to his upper-right forehead, from which he was bleeding and which caused him substantial pain.

37. Throughout the period of time that plaintiff Nathanson was chased, knocked down and subsequently handcuffed, none of the unidentified men identified themselves as police officers.

38. It was only after approximately thirty seconds had elapsed, during which time plaintiff Nathanson was physically assaulted, and during which time he continued to shout for someone to call the police, that one of the unidentified men stated, in substance, "We are the police, asshole."

39. Meanwhile, plaintiff Macnow, terrified of the four, large unidentified men, also ran. Two of the unidentified men chased after him.

40. While running, plaintiff Macnow glanced back to see that one of the unidentified men chasing after him had a gun.

41. Terrified, plaintiff Macnow slowed down and was struck from behind and knocked to the ground by one or both of the unidentified men chasing him, causing him substantial pain.

42. Plaintiff Macnow begged the unidentified men, in substance, to take his wallet and take whatever they wanted from him, believing the entire time that he was being robbed.

43. Plaintiff Macnow was handcuffed.

44. Plaintiff Nathanson was forced to his feet by one or both of the unidentified men, handcuffed and brought over to the vicinity of the yellow taxicab.

45. Plaintiff Nathanson observed plaintiff Macnow handcuffed against the trunk of the taxicab and further observed that a blue and white marked police car had arrived on the scene.

46. Plaintiffs Nathanson and Macnow subsequently learned that the four unidentified men who had exited the taxicab were defendant New York City police officers Spinelli, McNamara, Tamburello and John Doe Officer 1.

47. Plaintiff Nathanson spoke with an individual dressed in plainclothes who identified himself as a police detective (John Doe Officer 2) and who asked him why he and Macnow had been going over to Macnow's car. Plaintiff Nathanson informed defendant detective John Doe 2 that the car belonged to plaintiff Macnow, that the registration was inside the car and that the keys to the car were on the person of plaintiff Macnow.

48. Macnow identified the car in question by its Pennsylvania license plate, informed the defendant police officer that the car was registered in his father's name, and further informed the defendant police officer that the keys to the car were in his pocket.

49. Upon information and belief, upon searching plaintiff Macnow and the car, the defendant police officers recovered both the keys and registration to the car and confirmed that the car was in fact registered to plaintiff Macnow's father.

50. Upon information and belief after consultation with one another and with defendant officer John Doe 2 and uniformed police officers John Doe 3 and John Doe 4 who had arrived at the scene, defendants Spinelli, McNamara, Tamburello and John Doe 1, formally arrested plaintiff Macnow and plaintiff Nathanson, although neither plaintiff had committed any crime or violated any law.

51. Upon information and belief, defendants Spinelli, McNamara, Tamburello and John Does 1 – 4, conspired to press charges against both plaintiffs to cover up for their brutality in seizing them, hurting them and refusing to identify themselves properly.

52. Plaintiffs were subsequently driven to the 7th Precinct stationhouse where they were photographed and fingerprinted and locked in a cell.

53. When they arrived at the Precinct, both Plaintiff's Nathanson and Macnow requested to speak to an attorney. Both were refused.

54. Upon information and belief, defendant John Does 2, 3 and 4 authorized the arrest of plaintiff Macnow and/or sanctioned and condoned it by their acquiescence.

55. Upon information and belief, defendant John Does 2, 3 and 4 authorized the use of excessive force against plaintiff Macnow it by their failure to intercede and sanctioned and condoned it by their acquiescence.

56. Upon information and belief, defendant John Does 2, 3 and 4 authorized the arrest of plaintiff Nathanson and/or sanctioned and condoned it by their acquiescence

57. Upon information and belief, defendant John Doe 2, 3 and 4 authorized the use of excessive force against plaintiff Nathanson by their failure to intercede and sanctioned and condoned it by their acquiescence.

58. Plaintiff Nathanson, in substantial pain and still bleeding from the wound to his head, remained in a jail cell in the 7th Precinct stationhouse for approximately two hours before receiving any medical attention.

59. Even then, the treating EMT informed plaintiff Nathanson that he lacked a bandage sufficient in size to cover plaintiff's wound. Plaintiff's wound was left open and un-

bandaged throughout the entire time that plaintiff was in police and court custody, until such time as plaintiff's release after his arraignment.

60. Plaintiffs were initially placed in a cell together but were subsequently separated and placed in different cells.

61. Plaintiff Nathanson was taken from the second cell into a small room where he was questioned by three police officers dressed in suits, John Does 5, 6 and 7.

62. Plaintiff Nathanson was not provided a lawyer, nor was he read his Miranda warnings.

63. During this questioning, plaintiff Nathanson reiterated what he had told defendants Spinelli, McNamara, Tamburello, John Doe 1 and John Doe 2 at the scene, namely that the car was registered to his friend's father and that he and his friend had been looking in the car for his friend's driver's license.

64. Plaintiff Nathanson was returned to his cell at the 7th Precinct stationhouse.

65. Nathanson was held overnight until approximately 10:00 a.m. on Saturday morning when he was transported to Central Booking.

66. Shortly after plaintiff Nathanson was returned to his cell, plaintiff Macnow was taken from his cell to a small room where he was questioned by three police officers dressed in suits, John Does 5, 6 and 7.

67. Plaintiff Macnow was not read his Miranda warnings prior to this questioning, nor was he ever provided the counsel that he had requested.

68. During this questioning, plaintiff Macnow reiterated what he had told the plainclothes and uniformed officers at the scene, namely that the car was registered to his father and that he had been inside the car looking for his misplaced driver's license.

69. Plaintiff was returned to his cell at the 7th Precinct police stationhouse and held overnight until approximately 10:00 a.m. on Saturday morning when he was transported to Central Booking.

70. Upon information and belief, defendants Spinelli, McNamara, Tamburello and John Does 1 through 7, knew that neither plaintiff had committed any crime nor violated any law.

71. Defendants Spinelli, McNamara, Tamburello and John Does 1 through 7, knew they had among other things frightened and injured both plaintiffs, and arrested both to conceal defendants' wrongdoing.

72. Defendants Spinelli, McNamara, Tamburelli and John Doe 1 through 7, caused plaintiff Macnow to be transferred to Central Booking and then to the Criminal Court pens, while defendants filed false criminal charges against plaintiff in an effort to cover up their unlawful treatment of him.

73. Defendants Spinelli, McNamara, Tamburelli and John Does 1 through 7, caused plaintiff Nathanson to be transferred to Central Booking and then to the Criminal Court pens, while defendants filed false criminal charges against plaintiff in an effort to cover up their unlawful treatment of him.

74. On December 20, 2008, defendant Spinelli signed a sworn criminal complaint charging plaintiff Macnow with one count of Assault in the Third Degree, in violation of New York Penal Law 120.00(1); one count of Resisting Arrest, in violation of New York Penal Law 205.30; and one count of Obstruction of Governmental Administration in the Second Degree, in violation of New York Penal Law 195.05.

75. Said charges were false, and defendant Spinelli knew that the charges were false.

76. In particular, upon information and belief, Spinelli knew that McNamara had hurt himself after failing to identify himself and chasing Plaintiff Macnow.

77. Upon information and belief, Spinelli falsely attested that McNamara was assaulted when in fact he had simply injured himself, if at all, of his own accord.

78. On December 20, 2008, defendant Spinelli signed a sworn criminal complaint charging plaintiff Nathanson one count of Resisting Arrest, in violation of New York Penal Law 205.30 and one count of Obstruction of Governmental Administration in the Second Degree, in violation of New York Penal Law 195.05.

79. Said charges were false, and defendant Spinelli knew that the charges were false.

80. Plaintiff Macnow was held for hours, in great fear, in a holding pen with numerous other arrestees awaiting arraignment.

81. Plaintiff Nathanson was held for hours, in great physical pain and fear, in a holding pen with numerous other arrestees awaiting arraignment.

82. Defendants Spinelli, McNamara, Tamburelli and John Doe 1's, assault and arrest of plaintiff Macnow caused him to suffer great fear and terror.

83. Defendants Spinelli, McNamara, Tamburelli and John Doe 1's, assault and arrest of plaintiff Nathanson caused him to suffer substantial pain, great fear and terror and he sustained a permanent scar in the area of his upper right forehead as a direct result of their actions.

84. Upon information and belief, John Does 5, 6, and 7 authorized and condoned the arrests and charges brought against plaintiffs Nathanson and Macnow by their failure to intercede, investigate and intercede in the prosecution.

85. On December 20, 2008, more than 20 hours after his arrest, plaintiff Macnow was arraigned in New York City Criminal Court and was released on his own recognizance.

86. As a result of his arrest and prosecution, Plaintiff Macnow was compelled to delay an interview for a medical residency program in New York, disclose the arrest at the time he was applying to highly competitive institutions for medical residency placement, miss hours of medical school in a private institution, and delay a marriage proposal planned for the day of his arraignment.

87. In addition Plaintiff Macnow had numerous expenses including, but not limited to attorney's fees, travel to and from Boston to appear in court in New York, and related expenses.

88. At the time of his arrest plaintiff Macnow was preparing to graduate from medical school and interviewing around the country for pediatric medical residency programs.

89. Immediately after his arrest plaintiff Macnow was forced to cancel and postpone interviews in the highly competitive process, as a direct result of his false arrest and open criminal case on his rap sheet that impaired his credentials.

90. Defendants continued the prosecution of plaintiff Macnow for several months until March 6, 2009, when the New York City Criminal Court dismissed all charges against him at the request of prosecutors with the New York County District Attorney's Office.

91. On December 20, 2008, more than 20 hours after his arrest, plaintiff Nathanson was arraigned in New York City Criminal Court and was released on his own recognizance.

92. At the time of his arrest plaintiff Nathanson was employed as a producer in a television show conducted primarily in Colorado and Hawaii. As a result of his false arrest and prosecution, Nathanson was required not only to miss work but to travel unnecessarily back to New York to consult with counsel, appear in court and otherwise defend his case.

93. Defendants continued the prosecution of plaintiff Nathanson for several months until March 6, 2009, when the New York City Criminal Court dismissed all charges against him at the request of prosecutors with the New York County District Attorney's Office.

94. As a result of his arrest and prosecution, Plaintiff Nathanson incurred numerous expenses and damages, including, but not limited to, a missed flight to the West coast for the holidays while incarcerated, and missed work.

95. In addition Plaintiff Nathanson had numerous expenses including, but not limited to, attorney's fees, travel expenses to appear in court in New York, and related expenses.

96. Upon information and belief, more than ten months after the incident Defendants Kelly, the NYPD, and Defendant City of New York has failed to commence any investigation into or impose any discipline whatsoever upon defendants Spinelli, McNamara, Tamburelli or any of the John Doe defendants arising out of their misconduct relating to the incident described above, even after the charges were dismissed.

97. Upon information and belief, instead of promptly investigating and punishing defendants Spinelli, McNamara, Tamburelli or any of the John Doe defendants, defendant Kelly and defendant City ratified the behavior of defendant Spinelli, McNamara, Tamburelli and the John Doe defendants toward plaintiffs by failing to adequately or promptly investigate, punish or prosecute them for their misconduct.

98. Upon information and belief, defendant Kelly and defendant City, more than ten months after the incident, failed to discipline, sanction, or adequately investigated the misconduct of defendants Spinelli, McNamara, Tamburelli or any of the John Doe defendants for their false and wrongful arrest, physical abuse and mistreatment of plaintiffs.

99. Upon information and belief, defendant Kelly and defendant City have tolerated the conspiracy of defendant Spinelli, McNamara, Tamburelli and the John Doe defendants to conceal their misconduct through silence and/or willful ignorance and through a systemic failure to adequately investigate, train or discipline.

100. Upon information and belief, defendant Kelly and defendant City have tolerated the failure of defendants Spinelli, McNamara, Tamburelli, and the John Doe defendants to properly identify themselves in citizen encounters and have tolerated the creation of dangerous and potentially lethal confrontational encounters between plain clothes officers and citizenry. Defendants Kelly and City have further tolerated police officer unfamiliarity with the Patrol Guide, about which officers are required to be familiar.

101. Upon information and belief and for example and without limitation, defendant Kelly and defendant City have tolerated and failed to monitor that officers comply with numerous Patrol Guide policies, therefore causing any Guides to be entirely without force or effect and, resulting in a *de facto* lack of any policy whatsoever.

102. Upon information and belief and for example and without limitation defendant Kelly and defendant City have tolerated and failed to monitor officer's compliance regarding police officer defendants' failure to give name and shield number to anyone requesting them as required by the Patrol Guide; failure to be courteous and respectful, as required by the Patrol Guide; failure to avoid the use of excessive force, as required by the Patrol Guide; failure to report violations observed by supervisory officers for corrective action, as required by the Patrol Guide; failure to advise persons taken into custody of their constitutional rights or cease interrogation if subject wants an attorney, also as required by the Patrol Guide

103. Each of the defendants violated a non-delegable duty to plaintiff Macnow.

104. Each of the defendants violated a non-delegable duty to plaintiff Nathanson.

105. Each of the defendants acted with a reckless disregard for the safety and constitutional rights of plaintiffs.

106. Each of the defendants acted with reckless disregard for the safety and well-being of plaintiffs.

107. On March 9, 2009, within 90 days after the claims alleged arose, plaintiff Macnow filed a Notice of Claim with the City of New York. More than thirty days have passed since the plaintiff filed his Notice of Claim, and the City of New York has not paid or adjusted said claim.

108. On March 6, 2009, within 90 days after the plaintiff Nathanson filed a Notice of Claim with the City of New York. More than thirty days have passed since the plaintiff filed his Notice of Claim, and the City of New York has not paid or adjusted said claim.

FIRST CLAIM FOR RELIEF

109. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 108 as if fully set forth herein.

110. On December 19, 2008, when defendants Spinelli, McNamara, Tamburelli and John Doe 1 surrounded plaintiff Macnow, plaintiff Macnow was, at all times, acting in a peaceful and lawful manner and had committed no crime nor violated any laws.

111. Defendants Spinelli, McNamara, Tamburelli and John Doe 1 seized and detained plaintiff Macnow without probable cause or reasonable suspicion.

112. Defendants Spinelli, McNamara, Tamburelli and John Doe 1, along with defendants John Does 2, 3 and 4, authorized the seizure and detention of plaintiff Macnow without probable cause or reasonable suspicion.

113. Defendants John Does 5, 6 and 7 learned of the illegal seizure and detention and did not intercede to stop it but instead conspired to continue the violation by permitting the continued detention.

114. In seizing and detaining plaintiff Macnow and in authorizing said seizure and detention, defendants Spinelli, McNamara, Tamburelli and John Does 1 through 4 abused their power as government employees.

115. By reason of their acts and omissions, defendants Spinelli, McNamara, Tamburelli and John Does 1 through 7, in gross and wanton disregard of the rights of plaintiff Macnow, subjected him to an unreasonable seizure in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

116. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All said injuries may be permanent.

SECOND CLAIM FOR RELIEF

117. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 116 as if fully set forth herein.

118. On December 19, 2008, when defendants Spinelli, McNamara, Tamburelli and John Doe 1 surrounded plaintiff Nathanson, plaintiff Nathanson was, at all times, acting in a peaceful and lawful manner and had committed no crime nor violated any laws.

119. Defendants Spinelli, McNamara, Tamburelli and John Doe 1 seized and detained plaintiff Nathanson without probable cause or reasonable suspicion.

120. Defendants Spinelli, McNamara, Tamburelli and John Doe 1, along with defendants John Does 2, 3 and 4, authorized the seizure and detention of plaintiff Nathanson without probable cause or reasonable suspicion.

121. Defendants John Does 5, 6 and 7 learned of the illegal seizure and detention and did not intercede to stop it but instead conspired to continue the violation by permitting the continued detention.

122. In seizing and detaining plaintiff Nathanson and in authorizing said seizure and detention, defendants Spinelli, McNamara, Tamburelli and John Does 1 - 4 abused their power as government employees.

123. By reason of their acts and omissions, defendants Spinelli, McNamara, Tamburelli and John Does 1 - 7, in gross and wanton disregard of the rights of plaintiff Nathanson, subjected him to an unreasonable seizure in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

124. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All said injuries may be permanent.

THIRD CLAIM FOR RELIEF

125. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 124 as if fully set forth herein.

126. In arresting and detaining plaintiff Macnow, defendants Spinelli, McNamara, Tamburelli and John Doe 1, and defendant detective John Doe 2, acted in the course of their employment for defendant City of New York.

127. In arresting and detaining plaintiff Macnow without probable cause and in authorizing said arrest and detention, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 through 7 engaged in an unreasonable seizure in violation of Article 1, Section 12 of the New York Constitution, and in a false arrest and false imprisonment, in violation of the laws of the State of New York.

128. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

FOURTH CLAIM FOR RELIEF

129. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 128 as if fully set forth herein.

130. In arresting and detaining plaintiff Nathanson, defendants Spinelli, McNamara, Tamburelli and John Doe 1, and defendant detective John Doe 2, acted in the course of their employment for defendant City of New York.

131. In arresting and detaining plaintiff Nathanson without probable cause and in authorizing said arrest and detention, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 through 7 engaged in an unreasonable seizure in violation of Article 1, Section 12 of the New York Constitution, and in a false arrest and false imprisonment, in violation of the laws of the State of New York.

132. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

FIFTH CLAIM FOR RELIEF

133. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 132 as if fully set forth herein.

134. On December 19, 2008, when defendants Spinelli, McNamara, Tamburelli and John Doe 1 knocked plaintiff Macnow to the ground and handcuffed him, plaintiff Macnow was in the custody of defendants and was not resisting or in any other way presenting any threat, physical or otherwise, to defendants Spinelli, McNamara, Tamburelli or John Doe 1.

135. In knocking plaintiff Macnow to the ground and in handcuffing him defendants Spinelli, McNamara, Tamburelli and John Doe 1 acted unreasonably and violated plaintiff's right to be free from excessive force under the Fourth and Fourteenth Amendments to the United States Constitution.

136. In authorizing and/or ratifying said use of excessive force, defendants John Does 2 through 7, defendant Kelly and defendant City acted unreasonably and violated plaintiff Macnow's right to be free from excessive force under the Fourth and Fourteenth Amendments to the United States Constitution.

137. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

SIXTH CLAIM FOR RELIEF

138. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 137 as if fully set forth herein.

139. On December 19, 2008, when defendants Spinelli, McNamara, Tamburelli and John Doe 1 knocked plaintiff Nathanson to the ground, punched him repeatedly about the face

and head, and handcuffed him, plaintiff Nathanson was in the custody of defendants and was not resisting or in any other way presenting any threat, physical or otherwise, to defendants Spinelli, McNamara, Tamburelli or John Doe 1.

140. In knocking plaintiff Nathanson to the ground, in punching him repeatedly about the face and head and in handcuffing him defendants Spinelli, McNamara, Tamburelli and John Doe 1 acted unreasonably and violated plaintiff's right to be free from excessive force under the Fourth and Fourteenth Amendments to the United States Constitution.

141. In authorizing and/or ratifying said use of excessive force, Defendants John Does 2 through 7 and defendant Kelly and defendant City acted unreasonably and violated plaintiff Nathanson's right to be free from excessive force under the Fourth and Fourteenth Amendments to the United States Constitution.

142. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

SEVENTH CLAIM FOR RELIEF

143. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 142 as if fully set forth herein.

144. In surrounding plaintiff Macnow in a threatening manner, knocking him to the ground, handcuffing him and transporting him to the police precinct, defendants Spinelli, McNamara, Tamburelli and John Doe 1 intentionally placed plaintiff Macnow in apprehension of imminent harmful and offensive contact.

145. In knocking plaintiff Macnow to the ground, defendants Spinelli, McNamara, Tamburelli and John Doe 1 intentionally and without consent touched plaintiff Macnow's person in an offensive manner and committed a battery upon him.

146. By said actions, defendants Spinelli, McNamara, Tamburelli and John Doe 1 unlawfully interfered with the person of plaintiff Macnow.

147. Defendant Spinelli, McNamara, Tamburelli and John Does 1 through 7's actions were within the scope of their employment with defendant City of New York and done under color of law.

148. In committing said actions and/or tolerating said actions, defendants Spinelli, McNamara, Tamburelli and John Does 1 -7, Kelly, and City assaulted and battered plaintiff Macnow.

149. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

EIGHTH CLAIM FOR RELIEF

150. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 149 as if fully set forth herein.

151. In surrounding plaintiff Nathanson in a threatening manner, knocking him to the ground, striking plaintiff about the face and head, handcuffing him and transporting him to the police precinct, defendants Spinelli, McNamara, Tamburelli and John Doe 1 intentionally placed plaintiff Nathanson in apprehension of imminent harmful and offensive contact.

152. In knocking plaintiff to the ground and in striking plaintiff Nathanson about the face and head, defendants Spinelli, McNamara, Tamburelli and John Doe 1 intentionally and

without consent touched plaintiff Nathanson's person in an offensive manner and committed a battery upon him.

153. By said actions, defendants Spinelli, McNamara, Tamburelli and John Doe 1 unlawfully interfered with the person of plaintiff Nathanson.

154. Defendant Spinelli, McNamara, Tamburelli and John Doe 1 through 7s actions were within the scope of their employment with defendant City of New York and done under color of law.

155. In committing said actions and/or tolerating said actions, defendants Spinelli, McNamara, Tamburelli and John Does 1- 7, Kelly, and City assaulted and battered plaintiff Nathanson.

156. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

NINTH CLAIM FOR RELIEF

157. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 156 as if fully set forth herein.

158. Upon information and belief, defendants Spinelli, McNamara, Tamburelli and John Does 1 through 7 assaulted, arrested, and prosecuted or caused to be prosecuted, plaintiff Macnow in retaliation for his exercise of his right to speak freely, to request police identification and to criticize government action by requesting the basis for his arrest, in violation of the First and Fourteenth Amendments to the United States Constitution.

159. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

TENTH CLAIM FOR RELIEF

160. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 159 as if fully set forth herein.

161. Upon information and belief, defendants Spinelli, McNamara, Tamburelli and John Does 1 through 7 assaulted, arrested, and prosecuted or caused to be prosecuted plaintiff Nathanson in retaliation for his exercise of his right to speak freely, to request police identification and to criticize government action by requesting the basis for his arrest, in violation of the First and Fourteenth Amendments to the United States Constitution.

162. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

ELEVENTH CLAIM FOR RELIEF

163. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 162 as if fully set forth herein.

164. By failing to properly identify themselves, accosting, arresting, assaulting, handcuffing, caging, ignoring reasonable explanations as to their presence in the area, cursing at, denying legal assistance to and charging plaintiff Macnow with a crime he did not commit, defendants Spinelli, McNamara, Tamburelli and John Does 1 through 7 intentionally inflicted emotional distress upon plaintiff Macnow.

165. Defendants conduct was unreasonable and outrageous and exceeded the bounds tolerated by a decent society, and was done willfully, maliciously and deliberately with the intent to cause plaintiff Macnow severe mental and emotional pain, distress, and anguish and loss of enjoyment of life, or was done with reckless indifference to the likelihood that such behavior would cause such severe emotional distress and with utter disregard for the consequences of such actions.

166. The behavior and conduct on the part of defendants as described herein above was so extreme and outrageous as to be capable of causing plaintiff Macnow severe emotional distress and has in fact caused plaintiff Macnow severe mental anguish, distress, depression, and humiliation. All of said injuries may be permanent.

TWELFTH CLAIM FOR RELIEF

167. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 166 as if fully set forth herein.

168. By failing to properly identify themselves, accosting, arresting, assaulting, handcuffing, caging, ignoring reasonable explanations as to their presence in the area, cursing at, and denying legal assistance to, charging plaintiff Nathanson with a crime he did not commit and denying him timely medical attention, defendants Spinelli, McNamara, Tamburelli and John Does 1 through 7 intentionally inflicted emotional distress upon plaintiff Nathanson.

169. Defendants conduct was unreasonable and outrageous and exceeded the bounds tolerated by a decent society, and was done willfully, maliciously and deliberately with the intent to cause plaintiff Nathanson severe mental and emotional pain, distress, and anguish and loss of enjoyment of life, or was done with reckless indifference to the likelihood that such behavior

would cause such severe emotional distress and with utter disregard for the consequences of such actions.

170. The behavior and conduct on the part of defendants as described herein above was so extreme and outrageous as to be capable of causing plaintiff Nathanson severe emotional distress and has in fact caused plaintiff Nathanson severe mental anguish, distress, depression, and humiliation. All of said injuries may be permanent.

THIRTEENTH CLAIM FOR RELIEF

171. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 170 as if fully set forth herein.

172. On December 20, 2008, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 through 7 caused criminal charges to be filed against plaintiff Macnow.

173. Said charges were false, and defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1-7 knew them to be false.

174. Defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Doe 1 and 2 caused said charges to be filed willfully and maliciously.

175. On March 6, 2009, all of the criminal charges were dismissed and resolved in plaintiff's favor.

176. In commencing and continuing said charges, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 - 7, acting under color of state law, in gross and wanton disregard of plaintiff Macnow's rights, violated his right to be free of malicious criminal prosecutions under the Fourth and Fourteenth Amendments of the United States Constitution.

177. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and

suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

FOURTEENTH CLAIM FOR RELIEF

178. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 177 as if fully set forth herein.

179. On December 20, 2008, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 - 7 caused criminal charges to be filed against plaintiff Nathanson.

180. Said charges were false, and defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 - 7 knew them to be false.

181. Defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Doe 1 and 2 caused said charges to be filed willfully and maliciously.

182. On March 6, 2009, all of the criminal charges were dismissed and resolved in plaintiff's favor.

183. In commencing and continuing said charges, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 - 7, acting under color of state law, in gross and wanton disregard of plaintiff Nathanson's rights, violated his right to be free of malicious criminal prosecutions under the Fourth and Fourteenth Amendments of the United States Constitution.

184. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

FIFTEENTH CLAIM FOR RELIEF

185. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 184 as if fully set forth herein.

186. In commencing and continuing a criminal prosecution against plaintiff Macnow, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 - 7 prosecuted him maliciously and without probable cause in violation of the laws of the State of New York.

187. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries maybe permanent.

SIXTEENTH CLAIM FOR RELIEF

188. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 187 as if fully set forth herein.

189. In commencing and continuing a criminal prosecution against plaintiff Nathanson, defendants City, Kelly, Spinelli, McNamara, Tamburelli and John Does 1 - 7 prosecuted him maliciously and without probable cause in violation of the laws of the State of New York.

190. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries maybe permanent.

SEVENTEENTH CAUSE OF ACTION

191. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 190 as if fully set forth herein.

192. Defendants City and Kelly have, while acting under color of state law, deprived plaintiff Macnow of his constitutional rights as secured by the First and Fourteenth Amendments to the United States Constitution, in violation of 42. U.S.C. § 1983 and all related provisions of the United States Constitution.

193. Upon information and belief said defendants permitted, condoned or were deliberately indifferent to the practice or custom of falsifying charges by police officers against citizens in order to cover up the wrongdoing and misconduct by the officers. Such deliberate indifference may be inferred in the following ways:

(a) Defendants' supervisors' custom or practice of failing to properly investigate and address and discipline allegations of false charges and allegations of police harassment based on both constitutionally protected forms of speech and freedom of movement. The practice or custom is so wide-spread that they constitute constructive acquiescence of policymakers;

(b) Inadequate training/supervision was so likely to result in retaliatory arrests and/or prosecution upon false charges involving police misconduct that policymakers can reasonably be said to have tacitly condoned or to have been deliberately indifferent to the need to provide better training and supervision;

(c) Policymakers engaged in or tacitly condoned the retaliation/harassment and false charges by failing to properly investigate, train, supervise or otherwise prevent police misconduct, including but not limited to falsifying of charges;

d) Policymakers engaged in or tacitly condoned prolonged, inadequate and constitutionally inadequate investigations of intentional police misconduct by failing to properly and promptly investigate, discipline or moderate deliberate misconduct;

EIGHTEENTH CLAIM FOR RELIEF

198. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 197 as if fully set forth herein.

199. Defendants City and Kelly have, while acting under color of state law, deprived plaintiff Nathanson of his constitutional rights as secured by the First and Fourteenth Amendments to the United States Constitution, in violation of 42. U.S.C. § 1983 and all related provisions of the United States Constitution.

200. Upon information and belief said defendants permitted, condoned or were deliberately indifferent to the practice or custom of falsifying charges by police officers against citizens in order to cover up the wrongdoing and misconduct by the officers. Such deliberate indifference may be inferred in the following ways:

(a) Defendants' supervisors' custom or practice of failing to properly investigate and address and discipline allegations of false charges and allegations of police harassment based on both constitutionally protected forms of speech and freedom of movement. The practice or custom is so wide-spread that they constitute constructive acquiescence of policymakers;

(b) Inadequate training/supervision was so likely to result in retaliatory arrests and/or prosecution upon false charges involving police misconduct that policymakers can reasonably be said to have tacitly condoned or to have been deliberately indifferent to the need to provide better training and supervision;

(c) Policymakers engaged in or tacitly condoned the retaliation/harassment and false charges by failing to properly investigate, train, supervise or otherwise prevent police misconduct, including but not limited to falsifying of charges;

(d) Policymakers engaged in or tacitly condoned prolonged, inadequate and constitutionally inadequate investigations of intentional police misconduct by failing to properly and promptly investigate, discipline or moderate deliberate misconduct;

(e) Policymakers engaged in or tacitly condoned systemic and individual officers disregard of the procedures in the NYPD Patrol Guide with respect to interaction with the citizenry both in plain clothes and as identifiable police officers, both before or after arrest, with no discipline, advanced training or other repercussion.

201. At all times material to this complaint, defendant City's unenforced and unmonitored policies, practices, customs and usages, as implemented by the NYPD, were the direct and proximate cause of the unconstitutional conduct of the defendant officers, and of the resultant officers' cover-up of the wrong and unconstitutional conduct of these officers.

202. As a result of the foregoing police practices, customs and/or usages, defendant City has permitted and allowed the employment and retention of individuals as police officers, employed by the New York City Police Department, whose individual circumstances place the public or segments thereof at substantial risk of being the victims of illegal and/or abusive behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and a direct and proximate cause of the injuries to plaintiff Nathanson alleged herein.

203. Said custom, policy, practice and deliberate indifference to misconduct and/or the risk of misconduct, caused defendants Spinelli, McNamara, Tamburelli and John Does 1 - 7 to charge plaintiff Nathanson with crimes in order to cover up their unlawful seizure of plaintiff and their brutality against plaintiff Nathanson.

204. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages pain and suffering, terror, humiliation and other psychological injuries. All of said injuries maybe permanent.

NINETEENTH CLAIM FOR RELIEF

205. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 204 as if fully set forth herein.

206. Defendants City and Kelly provided grossly inadequate and unprofessional training and supervision to their agents and employees regarding:

- (a) Arresting persons without probable cause or reasonable suspicion;
- (b) The use of force against persons in police custody;
- (c) Falsifying criminal charges against citizens;
- (d) Retaliating against individuals who complain to the police;
- (e) Investigating complaints and incidents of police misconduct;
- (f) Conforming their conduct to the procedures and policies;
- (g) Internally investigating complaints and incidents of police misconduct;
- (h) Harassing and intimidating persons who have suffered from police

misconduct, in order to silence those persons and/or unnecessarily prolong investigations.

207. Defendants City and Kelly knew or should have known that their employees were improperly trained and supervised in said issues.

208. Defendants City and Kelly knew or should have known that their employees would confront said issues in their work and that, without training, they would make the wrong decisions on said issues.

209. Defendants City and Kelly were deliberately indifferent to their constitutional obligations to provide training to their employees on said issues.

210. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

TWENTIETH CLAIM FOR RELIEF

211. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 210 as if fully set forth herein.

212. Defendants City and Kelly provided grossly inadequate and unprofessional training and supervision to their agents and employees regarding:

- (a) Arresting persons without probable cause;
- (b) The use of force against persons in police custody;
- (c) Falsifying criminal charges against citizens;
- (d) Retaliating against individuals who complain to the police;
- (e) Investigating complaints and incidents of police misconduct;
- (f) Conforming their conduct to the procedures and policies;
- (g) Internally investigating complaints and incidents of police misconduct;
- (h) Harassing and intimidating persons who have suffered from police

misconduct, in order to silence those persons and/or unnecessarily prolong investigations.

213. Defendants City and Kelly knew or should have known that their employees were improperly trained and supervised in said issues.

214. Defendants City and Kelly knew or should have know that their employees would confront said issues in their work and that, without training, they would make the wrong decisions on said issues.

215. Defendants City and Kelly were deliberately indifferent to their constitutional obligations to provide training to their employees on said issues.

216. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

TWENTY FIRST CLAIM FOR RELIEF

217. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 216 as if fully set forth herein.

218. All defendants had a duty to exercise reasonable care toward plaintiff Macnow.

219. All defendants failed to exercise reasonable care towards plaintiff Macnow.

220. Defendants Spinelli, McNamara, Tamburelli and John Does 1 - 7, all took actions regarding plaintiff Macnow within the scope of their employment.

221. By reason of the foregoing, plaintiff Macnow suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

TWENTY SECOND CLAIM FOR RELIEF

222. Plaintiffs repeat and reallege each and every allegation of paragraphs 1 through 221 as if fully set forth herein.

223. All defendants had a duty to exercise reasonable care toward plaintiff Nathanson.

224. All defendants failed to exercise reasonable care towards plaintiff Nathanson.

225. Defendants Spinelli, McNamara, Tamburelli and John Does 1 - 7, all took actions regarding plaintiff Nathanson within the scope of their employment.

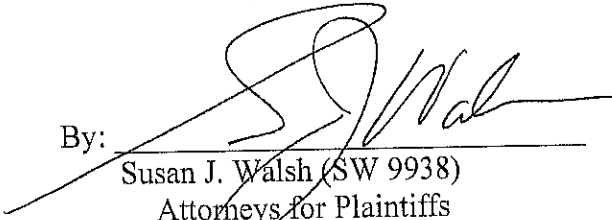
226. By reason of the foregoing, plaintiff Nathanson suffered severe physical and mental injuries, deprivation of liberty and privacy, medical and legal expenses, lost wages, pain and suffering, terror, humiliation and other psychological injuries. All of said injuries may be permanent.

WHEREFORE, plaintiffs respectfully requests that judgment be entered

- (i) Awarding plaintiffs full and fair compensatory damages as decided by the jury;
- (ii) Awarding plaintiffs full and fair punitive damages as decided by the jury;
- (iii) Awarding plaintiffs reasonable attorney fees pursuant to 42 U.S.C. §1988;
- (iv) Awarding plaintiffs interest from December 19, 2008; and
- (iv) Granting such other and further relief as may be deemed just and proper.

Dated: New York, New York
November 30, 2009

MOSKOWITZ, BOOK & WALSH, LLP

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